

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Miskovski	Team: Squad #14	CCRB Case #: 202007662	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/31/2020 12:45 PM	Location of Incident: § 87(2)(b)	Precinct: 94	18 Mo. SOL 4/30/2022	EO SOL 5/4/2022	
Date/Time CV Reported Thu, 11/05/2020 12:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/20/2020 12:27 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			094 PCT
2. SGT Howard Chu	03493	955820	094 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jason Velez	10664	934241	094 PCT
2. POM Bakar Mcduffie	19937	942867	094 PCT
3. POM Donald Frost	02663	948988	094 PCT
4. POM Brian Benvenuto	23866	952459	ESS 08
5. LT Keith Hum	00000	935034	E S U
6. PO Sean Regan	18457	955367	ESS 08
7. PO Rudy Urena	04706	955609	ESS 08
8. DTS Andres Gonzalez	04187	943311	ESS 08
9. SGT Christopher Fuller	02129	940164	ESS 08
10. DTS Reed Darby	03457	950274	ESS 10

Officer(s)	Allegation	Investigator Recommendation
A.SGT Howard Chu	Abuse: Sergeant Howard Chu forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
B. An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	§ 87(2)(b)

Case Summary

On November 5, 2020, § 87(2)(b) filed this complaint with IAB via telephone on behalf of himself and his assistant, § 87(2)(b). The case was received at the CCRB on November 20, 2020. On April 20, 2021, this case was reviewed by Panel 3F3-2021 and was closed pending litigation. On January 25, 2022, this case was reopened.

On October 31, 2020, at approximately 12:45 p.m., the landlord of a commercial warehouse at § 87(2)(b) in Brooklyn, known only as § 87(2)(b) along with tenants, called the police for assistance in dealing with § 87(2)(b) another tenant who allegedly removed security cameras, damaged property, and constructed an office against his lease terms within the warehouse. Police Officer Bakar McDuffie and Police Officer Jason Velez, both of the 94th Precinct, responded to the location and spoke with § 87(2)(b) who let them inside of the warehouse. § 87(2)(b) was not present at this time, though § 87(2)(b) was present within the office that § 87(2)(b) allegedly constructed against his lease terms. § 87(2)(b) refused to open the office door to speak with PO McDuffie and PO Velez without § 87(2)(b) present, and PO Velez and PO McDuffie called their supervisor, at which point, Sergeant Howard Chu, Police Officer Donald Frost, and Police Officer Jose Rivera, all of the 94th Precinct, responded to the location.

Sgt. Chu requested the assistance of the Emergency Services Unit, and Sergeant Christopher Fuller, Detective Andres Gonzalez, Police Officer Rudy Urena, Police Officer Sean Regan, Police Officer Brian Benvenuto, and Detective Reed Darby, all of ESU arrived. Shortly afterwards, § 87(2)(b) arrived at the location and was placed under arrest by PO Velez. Sgt. Chu told ESU that § 87(2)(b) was now a barricaded perpetrator and possible EDP inside of the office and that the ESU officers needed to enter and remove him (**Allegation A: Abuse of Authority**, § 87(2)(g)). Sgt. Fuller, the ESU supervisor on scene, followed through with entering the office and removing § 87(2)(b) per Sgt. Chu's request. During the entry, an unidentified ESU officer allegedly aimed his taser at § 87(2)(b) (**Allegation B: Abuse of Authority**, § 87(2)(g)).

§ 87(2)(b) was arrested on charges of § 87(2)(b) (BR 01), [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) was arrested for § 87(2)(b) (BR 03), [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

The investigation received body-worn camera (BWC) footage from PO McDuffie, PO Frost, PO Rivera, PO Velez, Sgt. Chu, Det. Gonzalez, PO Regan, Det. Darby, and Sgt. Fuller (**BR 05-18**), the relevant aspects of which are discussed in further detail below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Howard Chu forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) testified that he was alerted to the incident when he received a call from § 87(2)(b) informing him that police were at his warehouse (**BR 19**); § 87(2)(b) leased a 400 ft² section of a 2000-4000 ft² commercial warehouse for an art studio. This warehouse was used by other artists and creators as well, who leased their own sections. § 87(2)(b) testified that he received permission from the landlord to build a set of floor-to-ceiling walls to section off his portion of the warehouse into an office space. The landlord put in security cameras in the warehouse and § 87(2)(b) believed that they were using these cameras to spy on him. On October 30, 2021, § 87(2)(b) disconnected these cameras and slept in his part of the office in violation of his lease. On October 31, 2021, sometime in the late morning, § 87(2)(b) arrived for work and § 87(2)(b) left the location.

Later that day, § 87(2)(b) called § 87(2)(b) and told him that police officers were

outside of their office door, asking for § 87(2)(b) § 87(2)(b) reported that he showed his identification to the officers and told them that § 87(2)(b) was not present at the moment. § 87(2)(b) instructed § 87(2)(b) to keep the door closed and to continue working. Shortly afterwards, § 87(2)(b) went to the 94th Precinct stationhouse and reported that there were police officers at his art studio looking for him. The officers did nothing to help § 87(2)(b) so he left the stationhouse. § 87(2)(b) then arrived § 87(2)(b) where two uniformed officers placed § 87(2)(b) under arrest and into a police vehicle. From that vantage point, § 87(2)(b) claimed that he witnessed ESU officers walk into his studio office. While § 87(2)(b) was inside of the vehicle, an EMT approached and told § 87(2)(b) “Your friend has a psychiatric condition. Do you know if he is on any medication?” § 87(2)(b) did not respond because he did not believe that § 87(2)(b) had a psychiatric condition.

§ 87(2)(b) declined to participate in the investigation due to an ongoing civil court case and due to being “deeply affected” by the incident (**BR 20**) (see IAs for contact attempts).

The BWC footage and the 911 call audio establish a clear account of this incident. 911 call audio for NYPD Event § 87(2)(b) revealed that the landlord, known as § 87(2)(b) requested police to the warehouse because § 87(2)(b) illegally erected walls, damaged § 87(2)(b)s property and the property of other commercial residents of the artists’ space, and had threatened to kill § 87(2)(b) earlier that morning (**BR 22**).

BWC from PO Jason Velez, contained in IA #76, captures the incident most fully (**BR 10**). The footage begins at 00:00 with PO Velez and PO McDuffie speaking to § 87(2)(b) at the warehouse about the same information from the 911 call. The officers discuss footage that § 87(2)(b) shows them on a cell phone and § 87(2)(b)s mental health history. § 87(2)(b) leads the officers into the warehouse, where there are several different workspaces set up, and what appears to be an office in the back with walls and a door. From 08:24 to 11:40, PO McDuffie and PO Velez speak with § 87(2)(b) at the office door and § 87(2)(b) informs the officers that § 87(2)(b) is not present and should be back within the hour. § 87(2)(b) identifies himself as § 87(2)(b) and adds that he is in a remote class. At 11:40, the officers leave the warehouse, and § 87(2)(b) tells the officers that the person inside of the office is § 87(2)(b). From 14:00 to 39:00, the officers go back and forth between standing outside of the office and the warehouse itself and attempt to speak with § 87(2)(b) and tell him to come out, but § 87(2)(b) refuses and tells the officers that he is waiting for § 87(2)(b). PO McDuffie calls for Sgt. Chu to respond to the location. At 39:02, Sgt. Chu arrives and attempts to speak with § 87(2)(b) but again § 87(2)(b) repeats that he is in class and would like to wait for § 87(2)(b).

PO Velez’s BWC footage (**BR 10**) continues with § 87(2)(b) verbally telling Sgt. Chu the phone number for § 87(2)(b) at 48:06 and § 87(2)(b) does not answer Sgt. Chu’s subsequent calls. At 53:19, Sgt. Chu informs the officers that he is going to call ESU because § 87(2)(b) who Sgt. Chu insists is still inside of the office, is emotionally disturbed. Sgt. Chu then radios for ESU and reports a barricaded EDP. While the officers wait, at 01:08:30, § 87(2)(b) calls PO Velez (it is unclear how he received PO Velez’s number) and states that he will soon be at the location. PO McDuffie, overhearing the call, remarks that § 87(2)(b) on the phone sounds different from the man in the office, but § 87(2)(b) replies that he is sure that § 87(2)(b) is in the office and Sgt. Chu agrees. At 01:10:57, ESU officers arrive and until 01:30:00, they attempt to speak with § 87(2)(b) through the door and debate whether § 87(2)(b) is actually inside the office. At 01:31:47, Sgt. Fuller of ESU tells PO Velez that they drilled a hole in the door, and § 87(2)(b) showed them an identification that had the name § 87(2)(b). PO McDuffie announces to the officers that § 87(2)(b) is at the stationhouse due to a second call he had with § 87(2)(b) (PO McDuffie’s BWC in IA #77 from 01:14:08 to 01:15:23).

The next section of the incident is captured in Sgt. Chu’s BWC footage located in IA#75 (**BR 09**). At 00:30, the ESU officers arrive, and Sgt. Chu speaks with Sgt. Fuller of ESU. Sgt. Chu tells Sgt. Fuller that a man does not want to leave a room inside of the warehouse. At 00:44, Sgt. Chu says, “It is like an office area. It is a legit room with a door” and continues to explain the contact

attempts for § 87(2)(b) At 01:05, Det. Benvenuto walks up and asks, “So is he a perp or an EDP?” Sgt. Chu responds that the person is a perp and an EDP and is not mentally stable. At 02:00, Sgt. Chu takes a call from the desk sergeant at the 94th Precinct stationhouse and tells him to take a picture of a man at the stationhouse § 87(2)(b) At 03:01, Sgt. Chu explains that he believes § 87(2)(b) is in the room at that moment. Sgt. Fuller asks if the room is § 87(2)(b)’s own room, and Sgt. Chu confirms this. Sgt. Fuller asks if § 87(2)(b) is supposed to be in the room, and Sgt. Chu replies that he is supposed to be in the room, but he is a perpetrator for criminal mischief. At 03:53, Sgt. Fuller says, “If it is only for a misdemeanor then” but Sgt. Chu takes a call and Sgt. Fuller stops speaking. At 04:00, Sgt. Chu speaks with PO McDuffie. PO McDuffie explains that he just spoke with § 87(2)(b) over the phone and believed that § 87(2)(b) did not sound like the person inside of the room. At 05:14, Sgt. Chu walks out and speaks with Sgt. Fuller and the tenants who report that § 87(2)(b) stole thousands of dollars of watches from them. The tenants tell Sgt. Fuller that § 87(2)(b) is inside the room and that the person inside is lying about his name because they know § 87(2)(b) is inside. At 06:44, Sgt. Fuller asks § 87(2)(b) if § 87(2)(b) has a lease. § 87(2)(b) responds that he does have a lease, but the walls are not allowed. From 07:00 to 09:00, Sgt. Chu speaks with officers at the 94th Precinct stationhouse who say they have a § 87(2)(b) who appeared in person at the precinct stationhouse. Sgt. Chu confirms the name with § 87(2)(b) and the other tenants who say that it is not § 87(2)(b) because § 87(2)(b)’s full name is § 87(2)(b) Sgt. Chu then tells § 87(2)(b) and the other tenants that § 87(2)(b) must have a friend named § 87(2)(b) at the stationhouse. At 19:40, Sgt. Chu takes a call from the stationhouse on his departmental phone and learns that § 87(2)(b) was § 87(2)(b) At 20:59, Sgt. Chu shows the picture of the man at the stationhouse on his phone to the tenants who confirm that the person is § 87(2)(b)

At 21:28, § 87(2)(b) explains that § 87(2)(b) must be inside of the office if § 87(2)(b) is not there. Sgt. Chu responds that whoever is in the office is just an “EDP” then. At 22:14, Sgt. Chu confers with Sgt. Fuller and tells him that § 87(2)(b) is inside of the office and is “Straight EDP,” and to take him out of the room. Sgt. Fuller asks Sgt. Chu to check with the leaseholders to see if § 87(2)(b) should be arrested. At 22:55, § 87(2)(b) adds that § 87(2)(b) is not on the lease and the walls are illegal, so no one should be present. Sgt. Chu asks the tenants if they are going to press charges, and they respond in the affirmative. Sgt. Chu then states to Sgt. Fuller that they will press charges against § 87(2)(b) as an assistant. Sgt. Fuller asks Sgt. Chu if § 87(2)(b) attacked the residents and damaged the cameras, and Sgt. Chu clarifies that was § 87(2)(b) and instead they will just say that § 87(2)(b) is not supposed to be there. At 24:42, Sgt. Chu checks back with § 87(2)(b) who states that he is unsure if § 87(2)(b) is supposed to be in the office, but he is sure that the walls are illegal. PO McDuffie says, “So we don’t need a warrant, no nothing.”

The entry into the office is covered best by Det. Gonzalez’s BWC footage contained in IA#159 (BR 15). From 01:04 to 03:10, the ESU officers stand in front of the office door and force it open.

Later in PO Frost’s BWC footage in IA #72, at 02:17, shows that PO Frost walks up to Sgt. Chu if § 87(2)(b) needs to go to the hospital for an evaluation (BR 06). Sgt. Chu responds, “EDP.” PO Frost agrees and returns to the EMTs, telling them that § 87(2)(b) has to go for an evaluation. At 03:55, PO Frost tells the EMTs that § 87(2)(b) will be taken to the hospital.

Sgt. Chu testified that he was called to the scene by PO Velez and PO McDuffie (BR 23). Sgt. Chu learned from the landlord that § 87(2)(b) erected illegal walls to create an illegal office within the commercial warehouse. Sgt. Chu attempted to speak to § 87(2)(b) in the office space, because the landlord told Sgt. Chu that they had video of § 87(2)(b) entering the space and not leaving. When Sgt. Chu knocked, a man inside said his name was § 87(2)(b) Sgt. Chu asked § 87(2)(b) to leave the room, but § 87(2)(b) refused to do so. § 87(2)(b) told the officers that he was in a class, but he knew § 87(2)(b) and provided the man’s phone number to Sgt. Chu. Sgt. Chu called § 87(2)(b) three times without success. Sgt. Chu did not hear a phone ring inside of the office when he was calling. Sgt. Chu then consulted the landlord who said that § 87(2)(b)

§ 87(2)(b) was definitely inside of the office. Sgt. Chu believed that § 87(2)(b) was inside due to the landlord's affirmation and § 87(2)(b)'s refusal to open the door. Sgt. Chu called ESU after 15 minutes because he believed § 87(2)(b) was an EDP because the landlord's reported that § 87(2)(b) previously made violent statements and damaged property. In contradistinction, Sgt. Chu did not believe that § 87(2)(b) was a danger to himself or to others.

Sgt. Chu added that once ESU arrived, Sgt. Chu informed the officers and ESU's Sgt. Fuller that § 87(2)(b) was inside of the workspace office and refused to come out (**BR 23**). Ten minutes later, the desk sergeant of the 94th Precinct called Sgt. Chu and said that § 87(2)(b) was at the precinct. Sgt. Chu told the sergeant that this was incorrect because § 87(2)(b) was inside of the workspace. When Sgt. Chu told this information to the landlord, the landlord guessed that the person inside of the office was § 87(2)(b) the assistant to § 87(2)(b). At this point, Sgt. Chu did not believe that § 87(2)(b) was inside of the workspace. Sgt. Chu then updated Sgt. Fuller and told him that § 87(2)(b) was not inside of the office, and instead there was a § 87(2)(b). Sgt. Chu told Sgt. Fuller that they would arrest § 87(2)(b) for trespassing because he was not on the lease and because the office walls were illegally built. § 87(2)(b) then arrived at the location and Sgt. Chu had PO McDuffie and PO Velez arrest § 87(2)(b) for alleged burglaries of the other tenants. Five minutes later, the ESU officers brought § 87(2)(b) outside of the warehouse. Sgt. Chu checked the workspace and saw that ESU had drilled a small hole into the door. Sgt. Chu testified that he wanted EMS to take § 87(2)(b) to the hospital to ensure that he was "ok." Sgt. Chu made this assessment because § 87(2)(b) refused to come out of the workspace and § 87(2)(b) appeared depressed due to his monotone voice. Sgt. Chu did not believe that § 87(2)(b) was a danger to himself or to others.

Sgt. Fuller testified that he was called to the location by Sgt. Chu for a barricaded EDP (**BR 24**). Sgt. Fuller acknowledged that he was the ranking ESU officer at the location, and it was his responsibility to ensure that proper protocol was followed by his officers. Sgt. Chu requested that Sgt. Fuller and ESU enter and remove the individual, who was determined to be a barricaded perpetrator, from the office. Sgt. Fuller did not believe that he needed a warrant to enter the office because it was an illegally built room in a commercial establishment. Sgt. Fuller noted that in this case, the officers even had the landlord's permission at the scene to enter the location and remove the individual. Sgt. Fuller could not remember if they drilled a hole into the door or at what point they did so. Sgt. Fuller noted that it is procedure to do so if they cannot determine who is in a room. Sgt. Fuller noted that when they ultimately spoke with § 87(2)(b) to determine his identity and when they apprehended him, § 87(2)(b) was calm and did not appear to be in distress. Sgt. Fuller and the ESU officers handed § 87(2)(b) over to patrol and had no further interaction with him. Sgt. Fuller did not know if § 87(2)(b) was taken to the hospital.

Arrest #§ 87(2)(b) for § 87(2)(b) stated that § 87(2)(b) entered the location without permission or authority and remained there unlawfully, charging him with § 87(2)(b), § 87(2)(a) 160.50 as completed by PO Velez (**BR 03**). ESU report § 87(2)(b) notes that ESU officers were able to make contact with a perpetrator and possible EDP in an office space, used a hole saw to obtain a visual, and made entry into the office with no injuries to the officers or the perpetrator (**BR 28**). AIDED § 87(2)(b), completed by PO Frost and approved by Sgt. Chu, states that § 87(2)(b) was removed from the location to § 87(2)(b) and was "speaking unclear and was unable to follow simple instructions, aided appeared to be suffering from depression," (**BR 27**).

NYPD Patrol Guide Procedure 221-13 classifies an individual as an "Emotionally Disturbed Person" when they appear to "be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or to others," (**BR 26**). Officers are instructed to remove said individuals to the hospital.

§ 87(2)(g)

§ 87(2)(g)

Allegation (B) Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

The entry into the office is covered best by Det. Gonzalez's BWC footage contained in IA#159 (BR 15). From 01:04 to 03:10, the ESU officers stand in front of the office door and force it open. The first ESU officer holds a shield and his taser. § 87(2)(b) stands idly by in the room. At 01:04, the officer points his taser at § 87(2)(b) and tells him to show his hands. § 87(2)(b) complies, and the officers handcuff him. The officers escort § 87(2)(b) out of the office as he tells them to be careful of § 87(2)(b)'s dog. Any identifying information for the officer is not visible due to the ESU helmet and gear and a face mask. The officer's shield is not visible.

Sgt. Fuller testified that he did not have any specific safety concerns aside from the general entry procedure of wanting to secure the room quickly and safely (BR 24). Sgt. Fuller did not see any officer remove their taser or point it at § 87(2)(b) when the officers entered. When shown Sgt. Gonzalez's BWC footage, Sgt. Fuller could not recognize the officer who pointed a taser at § 87(2)(b) due to the helmet and facemask. Sgt. Fuller noted that it would be procedure when entering a room with an unknown occupant to secure the location, and to have a taser drawn and was up to officer discretion.

The ESU Report does not contain a list of officers who assisted with the job (BR 28).

NYPD Patrol Guide Procedure 221-08 states that a Conducted Electrical Weapon (CEW), or taser, should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons actually present (BR 35).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 31).
- Sgt. Chu has been a member of service for eight years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.

- As of February 9, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed by § 87(2)(b) regarding this complaint (**BR 33**).
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming abuse of process, prima facie tort, intentional infliction of emotion distress, negligent infliction of emotional distress, intentional tort, negligent training, negligent performance of police duties, negligent supervision, negligent retention and hiring, malicious prosecution, false arrest, false imprisonment, excessive force, failure to investigate properly, and civil rights violations. A monetary amount was not listed as redress, as § 87(2)(b) demanded a jury trial (**BR 34**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Squad: 14

Investigator:	<u>Michael Miskovski</u>	<u>Inv. Michael Miskovski</u>	<u>07/11/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Cassandra Fenkel</u>	<u>IM Cassandra Fenkel</u>	<u>07/11/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date